

TENTATIVE RULING

Case: **Lama v. Orion Aesthetics Corp. et al.**
Case No. CV2023-1945

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

Defendant Hartej Uppal, M.D., FACP's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453; *People v. Williams* (1959) 174 Cal.App.2d 364, 390.) However, the Court does not take judicial notice of the truth of the contents in Exhibit B. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Accordingly, plaintiff Iswor Lama, individually and as personal representative of the Estate of Dolmaya Thogra, decedent's objection to defendant's request for judicial notice is **OVERRULED**.

Defendant's objections to declaration of Shaun Carstairs, MD, FACMT, FACEP are **OVERRULED**. (Evid. Code, §§ 720, 801; *Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1116–1117; *Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510; see also Carstairs decl., ¶¶ 9-10.)

Defendant's motion for summary adjudication as to issue nos. 1 and 3 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant met his initial burden by showing that plaintiff cannot establish an element of his wrongful death and negligence cause of actions: breach of the applicable standard of care. (*Ibid.*; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985 [“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence”]; UMF 22-24.) However, upon the burden shifting to plaintiff, plaintiff has shown that a triable issue of material fact exists as to this element. (Code Civ. Proc., § 437c, subd. (p)(2); UMF 22-24.) Specifically, plaintiff's experts opine that defendant's medical care and treatment, rendered to decedent on January 6, 2023, fell below the standard of care. (Plaintiff's Compendium of Evidence [“COE”], Exhibit B [“Gharavi decl.”], ¶¶ 10-11; Plaintiff's COE, Exhibit C [“Carstairs decl.”], ¶¶ 10-11.)

Defendant's motion for summary adjudication as to issue nos. 2 and 4 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant met his initial burden by showing that plaintiff cannot establish an element of his wrongful death and negligence cause of actions: causation. (*Ibid.*; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402 [“The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony”]; UMF 25-28.) However, upon the burden shifting to plaintiff, plaintiff has shown that a triable issue of material fact exists as to this element. (Code Civ. Proc., § 437c, subd. (p)(2); UMF 25-28.) Specifically, plaintiff's expert opines that, to reasonable degree of medical probability, defendant's medical care and treatment was a substantial factor in causing decedent's death. (Carstairs decl., ¶¶ 10-11.)

Defendant's motion for summary adjudication as to issue no. 5 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Based on the legal authority provided, defendant has failed to establish that a loss of consortium claim cannot survive the death of a spouse. (See *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 804 [noting "that to adopt plaintiff's proposed rule—limiting common law loss of consortium claims to the lifetime of the injured spouse—would often lead, in the case of a life-curtailling injury, to multiple proceedings and the possibility of a double recovery or an inadequate recovery"]; *Budavari v. Barry* (1986) 176 Cal.App.3d 849, 854, fn. 7; *Lamont v. Wolfe* (1983) 142 Cal.App.3d 375, 381; UMF 20; Defendant's Appendix of Evidence, Exhibits B & F.) Therefore, the Court finds that defendant has not satisfied his burden on summary judgment. (Code Civ. Proc., § 437c, subd. (p)(2).)

Accordingly, defendant's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (c).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Minasian et al. v. Harlan et al.**
 Case No. CV2025-0844

Hearing Date: **January 29, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Arlyta Brown and Jim D. Brown, Trustees of the Jim D. Brown and Arlyta Brown Revocable Trust Dated May 15, 1992, and Gari Lyn Smithy as to the Remainder Interest, also known as Gari Lin Neufeld’s unopposed motion for judgment of dismissal with prejudice is **GRANTED**. (Code Civ. Proc., § 581, subd. (f)(1); Hamilton decl., ¶¶ 3-4, Exhibit A.)

If no hearing is requested, this tentative ruling is effective immediately. The Court will execute the proposed judgment of dismissal, lodged on December 16, 2025.